

		cannot meet this deadline, then counsel must request a continuance of the hearing. Failure to do so may result in the issuance of an OSC re Monetary Sanctions. At the Final Approval hearing, evidence supporting the request for an award of attorneys' fees should be presented in the form of time records, or a summary of time spent on the substantive tasks, to enable the Court to evaluate the lodestar and costs claimed. Class Counsel should state by declaration whether time records were kept and created contemporaneously or otherwise. The Court also reminds Plaintiff's counsel that although a determination regarding the amount of the attorneys' fees award will not be made until final approval, the Court is unlikely to approve attorneys' fees in excess of thirty percent (30%) of the Gross Settlement Amount absent unique circumstances. As a result, in the supplemental filing, Class Counsel should address whether any such unique circumstances exist in this litigation. At the Final Approval hearing, Plaintiff and Class Counsel must provide detailed declarations describing circumstances to justify the requested enhancement award, and addressing factors set forth in <i>Golba v. Dick's Sporting Goods, Inc.</i> (2015) 238 Cal.App.4th 1251, 1272, and <i>Clark v. Am. Residential Servs., LLC</i> (209) 175 Cal.App.4th 785, 804. Plaintiff must provide an estimate of the hours spent participating in this litigation. Plaintiff to give notice of this Court's ruling, including to the LWDA, within five (5) calendar days, and file proof of service.
111	Akoyan vs. TR Accountants 2022-01292163	Motion for Approval of Class Settlement Plaintiff David Akoyan's Motion for Preliminary Approval of Class Action and PAGA Settlement is CONDITIONALLY GRANTED, pending submission of a copy of Plaintiff's individual settlement agreement, if any. This is a putative wage-and-hour class action and PAGA matter. On November 17, 2022, Plaintiff David Akoyan, on behalf of himself and all employees similarly situated ("Plaintiff"), filed a Class Action Complaint against Defendant TR Advocates, LLC ("Defendant"). The Complaint asserts nine causes of action for various wage-and-hour violations of the Labor Code and violations of the Unfair Competition Law. On March 20, 2023, pursuant to Stipulation and Order, Plaintiff filed the First Amended Complaint in order to correctly identify the Defendant as TR Accountants dba Tax Relief

Advocates. On May 30, 2024, pursuant to Stipulation and Order, Plaintiff filed the operative Second Amended Complaint ("SAC") adding a cause of action for PAGA penalties. Defendant answered on June 20, 2024.

On January 17, 2025, Plaintiff filed the current Motion for Preliminary Approval of Class Action and PAGA Settlement, and submitted the Class Action and PAGA Settlement Agreement for the Court's review. The Motion seeks preliminary approval of the parties' proposed settlement for the non-reversionary Gross Settlement Amount of \$1,850,000.00.

Based upon a review of the Settlement Agreement, the Court finds the Settlement falls within the range of what is considered far and reasonable, subject to a final determination at the Final Approval hearing.

However, the Court notes that Paragraph 3.2.1.2 of the Settlement Agreement provides that Plaintiff is to receive an individual settlement of \$35,000.00 in exchange for a general release of Plaintiff's individual claims. The language of the provision implies that this individual settlement amount is to be paid out of the Gross Settlement Amount. Before preliminary approval can be granted, Plaintiff must submit a copy of any separate written individual settlement agreement related to the payment of the \$35,000.00 individual settlement amount, and Class Counsel must clarify whether this individual settlement is to be paid out of the Gross Settlement Amount. Accordingly, within ten (10) court days, Class Counsel must submit a supplemental declaration with an attached copy of the separate individual settlement agreement, if any, and a discussion of these issues.

Within five (5) court days, Class Counsel must also provide a revised Proposed Order with the following corrections:

- Revisions to reflect the reassignment of this matter to the Hon. Layne H. Melzer in Department CX102;
- Paragraph 10 must reflect the correct address of the Complex Civil courthouse;
- Provide actual dates for the Final Approval hearing and the other matters set forth in the implementation schedule.

Upon submission of counsel's adequate supplemental declaration and the revised Proposed Order, the Court will grant the Motion.

		The Motion for Final Approval will be heard on July 31, 2025, at 2:00 p.m. in Department CX102. All papers for the Motion for Final Approval are due no later than sixteen (16) court days prior to the hearing date. If Class Counsel cannot meet this deadline, then counsel must request a continuance of the hearing. Failure to do so may result in the issuance of an OSC re Monetary Sanctions. At the Final Approval hearing, evidence supporting the request for an award of attorneys' fees should be presented in the form of time records, or a summary of time spent on the substantive tasks, to enable the Court to evaluate the lodestar and costs claimed. Class Counsel should state by declaration whether time records were kept and created contemporaneously or otherwise. The Court also reminds Plaintiff's counsel that although a determination regarding the amount of the attorneys' fees award will not be made until final approval, the Court is unlikely to approve attorneys' fees in excess of thirty percent (30%) of the Gross Settlement Amount absent unique circumstances. As a result, in the supplemental filing, Plaintiff's counsel should address whether any such unique circumstances exist in this litigation. At the Final Approval hearing, Plaintiff and Class Counsel must provide detailed declarations describing circumstances to justify the requested enhancement award, and addressing factors set forth in <i>Golba v. Dick's Sporting Goods, Inc.</i> (2015) 238 Cal.App.4th 1251, 1272, and <i>Clark v. Am. Residential Servs., LLC</i> (209) 175 Cal.App.4th 785, 804. Plaintiff must provide an estimate of the hours spent participating in this litigation. Plaintiff to give notice of this Court's ruling, including to the LWDA, within five (5) calendar days, and file proof of service.
112	Riley vs. B. BRAUN MEDICAL, INC. 2019-01069273	Motion to Approve PAGA Settlement The Court has reviewed the supplemental materials provided by Plaintiff's counsel and finds that they substantially address the previously identified concerns. Accordingly, Plaintiff Keith E. Riley's Motion for Approval of PAGA Settlement is GRANTED. This is a PAGA-only action. On May 13, 2019, Plaintiffs Keith E. Riley and John Styles, on behalf of themselves and all others similarly situated ("Riley Plaintiffs"), filed a Complaint against Defendants B. Braun Medical, Inc. and staffing company, Manpower US, Inc. alleging several wage-and-hour violations of the Labor Code. On October 7, 2019, pursuant to a stipulation of the parties, the Riley Plaintiffs filed the First